

INNOVATIVE INFRASTRUCTURE ADVISING, LLC

ONE-WAY (UNILATERAL) NON-DISCLOSURE AGREEMENT

GoverningAI.US — Confidential Product Materials

PLEASE READ CAREFULLY. By clicking “Accept” (or any similar button or affirmation), or by accessing, viewing, downloading, or otherwise receiving any of the Materials (defined below), you (“Recipient”) agree to be bound by this One-Way Non-Disclosure Agreement (this “Agreement”). If you do not agree, do not access the Materials.

This Agreement is made between Innovative Infrastructure Advising, LLC, a South Carolina limited liability company (“IIA” or the “Disclosing Party”), and the individual or entity accessing the Materials (“Recipient” or the “Receiving Party”). IIA and Recipient are each a “Party” and together the “Parties.”

(A) IIA is the developer and owner of GoverningAI.US, a proprietary AI-native software platform focusing on artificial intelligence governance and workflow management system that is currently in research and development and has not been commercially released (the “Product”).

(B) IIA wishes to share certain confidential and proprietary materials regarding the Product with Recipient so that Recipient may use the Product for testing purposes (the “Purpose”).

(C) As a condition to receiving access to those materials, Recipient agrees to the obligations set forth in this Agreement.

NOW, THEREFORE, in consideration of the disclosure of Confidential Information and Recipient’s access to the Materials, the adequacy of which is hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS

(a) “Materials” means any documents, files, data, presentations, demonstrations, system-generated outputs and artifacts, and other information that IIA makes available to Recipient, whether through the Product, DocSend, a data room, email, or any other means, in connection with the Product or the Purpose.

(b) “Confidential Information” means any and all non-public information disclosed by IIA to Recipient, directly or indirectly, in writing, orally, electronically, or by inspection or demonstration, that is designated as confidential or that reasonably should be understood to be confidential given its nature and the circumstances of disclosure. Confidential Information includes, without limitation, the Materials and all non-public information concerning the Product, including its existence, development status, features, functionality, user interface, designs, architecture, source code, algorithms, models, datasets, methodologies, and know-how; product roadmaps and release plans; business plans and strategies; financial data, projections, and models; pricing and go-to-market plans; investor, pitch, and fundraising materials; client, customer, and prospect information; and the terms of any proposed or actual relationship between the Parties. The fact that the Materials have been made available, and the existence and subject matter of any discussions between the Parties, are themselves Confidential Information.

(c) Confidential Information does not include information that: (i) is or becomes publicly available through no act or omission of Recipient; (ii) was rightfully known to Recipient prior to disclosure without restriction; (iii) is rightfully received by Recipient from a third party without restriction on disclosure; or (iv) is independently developed by Recipient without use of or reference to IIA’s Confidential Information, as evidenced by written records.

(d) "Representatives" means Recipient's officers, directors, members, managers, employees, consultants, agents, legal counsel, accountants, and financial advisors who have a need to know the Confidential Information for the Purpose.

2. CONFIDENTIALITY OBLIGATIONS

Recipient agrees to:

- (a) hold all Confidential Information in strict confidence and not disclose it to any third party without IIA's prior written consent;
- (b) use the Confidential Information solely for the Purpose and for no other purpose whatsoever;
- (c) protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care;
- (d) limit disclosure of Confidential Information to those of its Representatives who have a need to know it for the Purpose and who are bound by confidentiality obligations at least as protective as those in this Agreement, with Recipient remaining responsible for any breach by its Representatives; and
- (e) promptly notify IIA in writing upon becoming aware of any unauthorized use, disclosure, or breach of this Agreement.

3. RESTRICTIONS ON USE; NO REVERSE ENGINEERING

Recipient shall not, and shall not permit any third party to: (a) copy, reproduce, or distribute the Materials except as reasonably necessary for the Purpose; (b) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code, structure, or underlying ideas of the Product; or (c) use the Confidential Information to develop, market, or assist any product or service that competes with the Product.

4. LEGALLY REQUIRED DISCLOSURE

If Recipient is required by applicable law, regulation, or court order to disclose Confidential Information, Recipient shall: (a) provide IIA with prompt written notice prior to disclosure, to the extent legally permitted; (b) cooperate with IIA, at IIA's expense, in seeking a protective order or other appropriate relief; and (c) disclose only that portion of the Confidential Information legally required to be disclosed and use reasonable efforts to ensure that it is treated confidentially.

5. TERM AND DURATION

This Agreement is effective upon the earlier of Recipient's acceptance of its terms or Recipient's first access to the Materials (the "Effective Date"). Recipient's obligations of confidentiality under this Agreement shall continue for a period of two (2) years from the Effective Date, after which they shall expire.

6. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

Upon IIA's written request, or upon completion or abandonment of the Purpose, Recipient shall promptly (a) cease all use of the Confidential Information and (b) return to IIA or permanently destroy all Materials and other Confidential Information in its possession or control, including all copies, extracts, and summaries, in any form, and, if requested, certify such destruction in writing. Recipient may retain one archival copy solely to the extent required by applicable law or a bona fide internal compliance policy, subject to the continuing obligations of this Agreement.

7. OWNERSHIP; NO LICENSE

All Confidential Information and Materials are and shall remain the exclusive property of IIA. Nothing in this Agreement grants Recipient any right, license, or interest in or to any Confidential Information, the Product, or any intellectual property of IIA, whether by implication, estoppel, or otherwise. No right to use any trade name, trademark, service mark, or logo of IIA is granted by this Agreement.

8. NO WARRANTY

ALL CONFIDENTIAL INFORMATION AND MATERIALS ARE PROVIDED "AS IS." IIA MAKES NO REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, AS TO THE ACCURACY, COMPLETENESS, OR FITNESS FOR ANY PARTICULAR PURPOSE OF ANY CONFIDENTIAL INFORMATION. RECIPIENT ACKNOWLEDGES THAT THE PRODUCT IS IN DEVELOPMENT, IS SUBJECT TO CHANGE, AND MAY NEVER BE RELEASED. IIA SHALL NOT BE LIABLE FOR ANY RELIANCE BY RECIPIENT ON THE CONFIDENTIAL INFORMATION.

9. NO OBLIGATION; NO RELATIONSHIP

Nothing in this Agreement obligates either Party to proceed with any transaction or relationship, to disclose any particular information, or to refrain from pursuing similar discussions with others. This Agreement does not create any partnership, joint venture, agency, or employment relationship between the Parties.

10. INJUNCTIVE RELIEF

Recipient acknowledges that any breach of this Agreement would cause irreparable harm to IIA for which monetary damages would be an inadequate remedy. Accordingly, IIA shall be entitled to seek equitable relief, including injunctive relief and specific performance, without the obligation to post bond or other security and without the necessity of proving actual damages, in addition to all other remedies available at law or in equity.

11. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the State of South Carolina, without regard to its conflict-of-laws principles. Recipient irrevocably submits to the exclusive jurisdiction of the state and federal courts located in South Carolina for any dispute arising out of or relating to this Agreement and waives any objection to venue or jurisdiction in those courts.

12. GENERAL PROVISIONS

(a) Electronic Acceptance. Recipient agrees that clicking to accept, or accessing the Materials, constitutes Recipient's electronic signature and forms a binding agreement to the same extent as a handwritten signature. The person accepting represents that they are at least 18 years of age and, if accepting on behalf of an entity, that they are authorized to bind that entity, which shall also be deemed the Recipient.

(b) Entire Agreement. This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior agreements, understandings, and representations relating thereto.

(c) Amendment; Waiver. This Agreement may be modified only by a writing authorized by IIA. No failure or delay by IIA in exercising any right shall constitute a waiver of that right.

(d) Severability. If any provision of this Agreement is held invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

(e) Assignment. Recipient may not assign this Agreement without IIA's prior written consent. IIA may freely assign this Agreement.

(f) Notices. Notices to IIA shall be in writing and delivered to: Innovative Infrastructure Advising, LLC, Attn: Brett Butz, Founder & CEO, brett@iiac.ai.

(g) Headings. Headings are for convenience only and do not affect the interpretation of this Agreement.

BY CLICKING "ACCEPT" OR BY ACCESSING THE MATERIALS, RECIPIENT ACKNOWLEDGES THAT IT HAS READ, UNDERSTOOD, AND AGREES TO BE BOUND BY THIS ONE-WAY NON-DISCLOSURE AGREEMENT.

Recipient's acceptance — including the accepting party's name, email address, and the date and time of acceptance — will be recorded electronically and shall serve as evidence of this Agreement.